

THE 12 SCHEDULES

What Doesn't Fit in an Article, Goes Here!

Mnemonic: "TEARS OF OLD PM" | 8 originally → 12 today

- Headings & Definitions ● Explanations ● Highlighter = Key Facts 🎯 Exam Tip ✗ Common Mistake
🧠 Memory Trick

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WHAT ARE SCHEDULES — AND WHY DO WE NEED THEM?

There are many things in the Constitution that **cannot be fully described inside the article itself** — the article simply says "refer to this schedule." Whatever cannot be written in the article, we write it separately in a **Schedule**.

Originally there were **8 Schedules**. Today there are **12 Schedules** — that means **4 new Schedules** have been added over time.



Fig 1: The 12-Schedule Mnemonic — "TEARS OF OLD PM"

T E A R S O F

1st States/UTs 2nd Emoluments 3rd Oaths 4th Rajya Sabha 5th Sched. Areas Tribal Areas 6th Federal Prov.

O L D P M

8th Official Languages 9th Land Reforms 10th Defection 11th Panchayat 12th Municipality

T-E-A-R-S-O-F-O-L-D-P-M = 12 Schedules!



Memory Trick

Just say it out loud: "TEARS OF OLD PM" — each letter is the first letter of what that numbered Schedule is about, in order from 1st to 12th!

Quick Overview – All 12 Schedules

No.	Letter	Deals With
1st	T	Names of States/UTs & their territorial extent
2nd	E	Emoluments (allowances) of President, Governor, Speaker, etc.
3rd	A	Forms of Oaths/Affirmations
4th	R	Allocation of seats in the Rajya Sabha
5th	S	Administration & control of Scheduled Areas
6th	O	Administration of Tribal Areas ("Other" Scheduled Areas)
7th	F	Federal Provisions (Union/State/Concurrent Lists)
8th	O	Official Languages
9th	L	Land Reforms
10th	D	Disqualification on ground of Defection
11th	P	Panchayats
12th	M	Municipalities

Exam Tip

If you remember the "TEARS OF OLD PM" phrase and its 12 letters, you can reconstruct the subject of any Schedule number instantly in the exam hall!

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SCHEDULES 1-4 – T · E · A · R 1st Schedule – "T" for Territory

Contains the names of the States and Union Territories, and their territorial extent – how far each one's boundary extends.

2nd Schedule – "E" for Emoluments

Deals with the emoluments (allowances) payable to various high offices:

- President, Governor
- Speaker & Deputy Speaker of the Lok Sabha / Legislative Assembly
- Chairman & Deputy Chairman of the Rajya Sabha / Legislative Council
- Judges

3rd Schedule – "A" for Affirmations (Oaths)

Contains the forms of Oaths/Affirmations. Here, Judges are common, and the oath forms for **MPs and MLAs** are also given — but **not** for the President or the Governor (they take their oath directly under their own separate Articles, not via this Schedule).

✗ Common Mistake

Don't assume the President's or Governor's oath is in the Third Schedule — it is *not*. The Third Schedule covers Judges, Ministers, MPs and MLAs — the President and Governor take oath under their own dedicated Articles.

4th Schedule – "R" for Rajya Sabha

Deals with the allocation of seats in the Rajya Sabha to each State/UT.

- Only **2 Union Territories** currently have representation in the Rajya Sabha: **Delhi and Puducherry** (other UTs have too small a population for representation)
- **Uttar Pradesh** has the most seats — **31 seats**

Fig 2: Schedules 1 to 4 at a Glance

1st (T): States/UTs & Extent

2nd (E): Emoluments

3rd (A): Oaths/Affirmations

4th (R): Rajya Sabha seats

UP = 31 seats (highest)

Only Delhi & Puducherry among UTs have RS seats



Exam Tip

Remember the exclusions carefully: **3rd Schedule** excludes President/Governor oaths;
4th Schedule — only 2 UTs (Delhi, Puducherry) get Rajya Sabha seats.

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SCHEDULES 5-8 — S · O · F · O

5th Schedule — "S" for Scheduled Areas

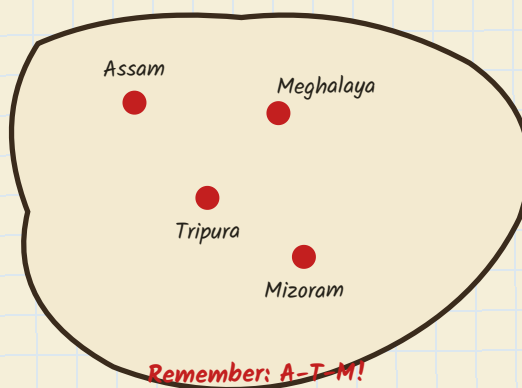
Deals with the **administration and control of Scheduled Areas** (and Scheduled Tribes).

6th Schedule — "O" for "Other" Scheduled Areas (Tribal Areas)

Covers the "**Other Scheduled Areas**" — even though these are usually called **Tribal Areas**, this Schedule is remembered as "Other" for the mnemonic. Trick to remember which states: **"ATM"** — Assam, Tripura, Meghalaya, Mizoram.



Fig 3: Sixth Schedule — Tribal Areas ("ATM")



Memory Trick

"Sixth Schedule = ATM" — Assam, Tripura, Meghalaya, Mizoram. Withdraw this fact from memory whenever asked about tribal-area administration!

7th Schedule – "F" for Federal Provisions

The most important Schedule for exams — deals with the **Federal Provisions**, i.e. the division of powers between the Union and the States. (Covered in full detail on the next page!)

8th Schedule – "O" for Official Languages

Originally had 14 languages; today it has **22 languages** — that's 8 languages added over time:

- 21st Amendment — added 1 language (Sindhi)
- 71st Amendment — added "KNM": Konkani, Nepali, Manipuri
- 92nd Amendment — added "BDSM": Bodo, Dogri, Santhali, Maithili



Memory Trick

Languages added: 21st Amdt → 1; 71st Amdt → "KNM" (Konkani, Nepali, Manipuri) → 3; 92nd Amdt → "BDSM" (Bodo, Dogri, Santhali, Maithili) → 4.
Total added = 1+3+4 = 8 → 14 becomes 22!



Exam Tip

Exams love asking "which amendment added which language" — memorise the groupings KNM (71st) and BDSM (92nd) as whole blocks, not individual languages.

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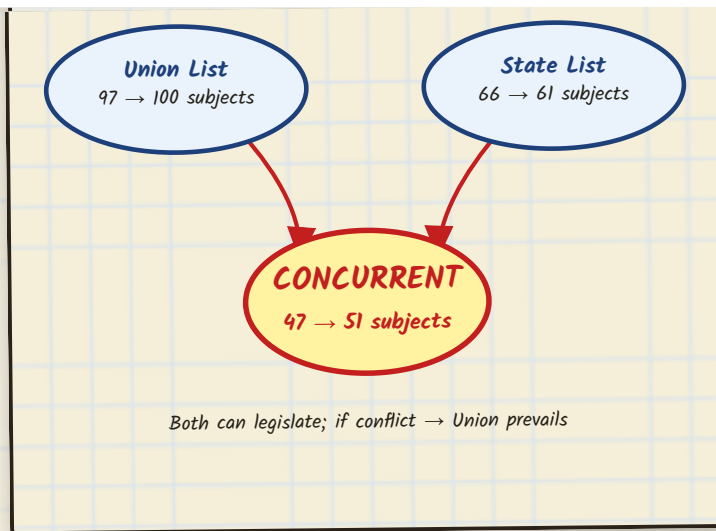


THE 7TH SCHEDULE IN DETAIL — UNION, STATE + CONCURRENT LISTS

The Seventh Schedule gives us three lists: **Union List**, **State List**, and **Concurrent List**.



Fig 4: The Three Lists of the 7th Schedule



The Basic Rule

- **Union List:** only Parliament can make laws
- **State List:** only the State Legislature can make laws
- **Concurrent List:** both can make laws — but if there's a conflict, the **Union (Parliament) law prevails**
- A State can **never** make laws on Union List subjects

But the Union CAN Legislate on State Subjects – 5 Situations

1. When a **National Emergency** is in operation
2. When **President's Rule** is imposed in that State
3. When **two or more States** jointly request Parliament to legislate for them
4. To **implement an international treaty/agreement**
5. When the **Rajya Sabha**, by a **special majority**, authorises Parliament to legislate on a State subject

✗ Common Mistake

Don't say "the Union can never touch the State List" — it definitely can, but only in these **5 specific situations** listed above.

★ Number of Subjects

List	Earlier	Now
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Union List	97	100
State List	66	61
Concurrent List	47	51

Residuary Powers

Any subject **not mentioned in any of the three lists** is called a **Residuary subject** — and the power to legislate on it rests with **Parliament**.

Example Subjects (Just to Remember)

- **Union List:** Banking, Foreign Affairs, Railways, Atomic Energy, Defence, (Foreign) Trade & Commerce
- **State List:** Liquor/Public Health, Gambling, Public Order, Police, Agriculture, Fisheries
- **Concurrent List:** Marriage & Divorce, Labour disputes, Electricity, and (since the 42nd Amendment) Education



Understand it like this...

Union subjects touch the whole country (Railways, Defence, Foreign Affairs). State subjects are local, day-to-day matters (Police, Agriculture, Public Order). If liquor harms health, health becomes a state concern too; if gambling causes disorder, public order (and hence police) is also a state concern — one thing leads to the next!

42nd Amendment — 5 Subjects Moved from State to Concurrent List

This is exactly why the State List reduced from 66 to 61 — **5 subjects** were transferred out to the Concurrent List:



Exam Tip

Remember these 5 subjects moved by the 42nd Amendment: **Education, Forests, Weights & Measures, Wildlife, Administration of Justice** — all from State List to Concurrent List.

SCHEDULES 9-12 — L · D · P · M

9th Schedule — "L" for Land Reforms

Deals with Land Reforms — specifically, the abolition of the Zamindari system. Added by the First Amendment, 1951.

10th Schedule — "D" for Defection

Deals with disqualification of members on the ground of defection (many people mistakenly read this as being about Panchayats — it is not). Added by the 52nd Amendment, 1985.

❌ Common Mistake

The Tenth Schedule is about Defection, not Panchayats! It's easy to misread "D" this way — keep the letter tied firmly to "Defection."

11th Schedule — "P" for Panchayat

Added by the 73rd Amendment — passed in 1992, implemented in 1993. Contains 29 functional items for Panchayats.

12th Schedule — "M" for Municipality

Added by the 74th Amendment, 1992. Contains 18 functional items for Municipalities.

 Fig 5: The Four New Schedules & Their Amendments

9th: Land Reforms — 1st Amdt (1951)

Panchayat — 73rd Amdt (1992)

10th: Defection — 52nd Amdt (1985)

Municipality — 74th Amdt (1992)

11th Schedule = 29 functional items

12th Schedule = 18 functional items

Memory Trick

The 4 "new" Schedules and their amendments: 9th → 1st Amendment (1951), 10th → 52nd Amendment (1985), 11th → 73rd Amendment (Panchayat, 1992/93), 12th → 74th Amendment (Municipality, 1992).

Exam Tip

Functional items: 29 for Panchayats (11th), 18 for Municipalities (12th) — a frequently asked number pair, don't swap them!

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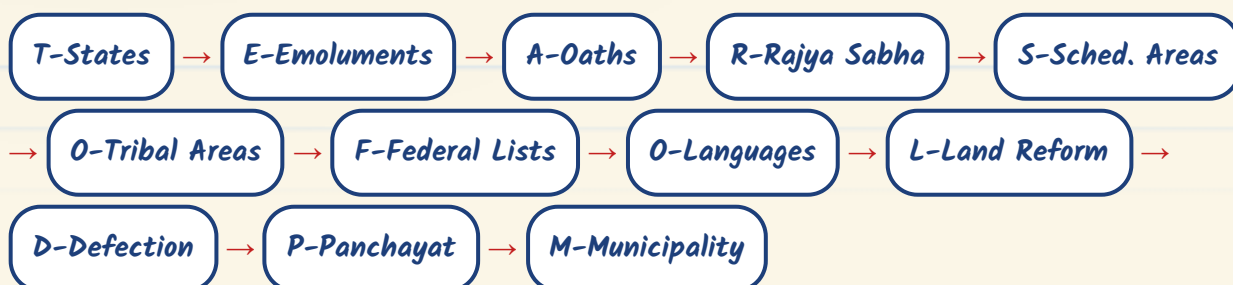
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EXAM-READY SUMMARY All 12 Schedules — Final Recap

No.	Subject	Key Fact
1st	States/UTs & extent	—
2nd	Emoluments	President, Governor, Speaker, Judges, etc.
3rd	Oaths/Affirmations	Judges, MPs, MLAs (not President/Governor)
4th	Rajya Sabha seats	UP = 31 (highest); only Delhi & Puducherry among UTs
5th	Scheduled Areas	Administration & control

6th	Tribal Areas	Assam, Tripura, Meghalaya, Mizoram (ATM)
7th	Union/State/Concurrent Lists	100 / 61 / 51 subjects
8th	Official Languages	14 → 22 (21st, 71st, 92nd Amendments)
9th	Land Reforms	1st Amendment, 1951
10th	Defection	52nd Amendment, 1985
11th	Panchayat	73rd Amendment; 29 items
12th	Municipality	74th Amendment; 18 items



📖 "Whatever can't fit in an Article, goes into a Schedule" — the one-line reason all 12 Schedules exist!

Numbers Worth Remembering

- Schedules: 8 originally → 12 now
- Union List: 97 → 100 subjects
- State List: 66 → 61 subjects (5 moved out via 42nd Amendment)
- Concurrent List: 47 → 51 subjects
- Official Languages: 14 → 22 (via 21st, 71st, 92nd Amendments)
- Panchayat items: 29 | Municipality items: 18

🎯 Exam Tip

"TEARS OF OLD PM" is your fastest revision tool — recite it 10 times before the exam and you'll never forget which Schedule is which!

❌ Common Mistake

Don't mix up the State List count with the Concurrent List count — remember State List actually *decreased* (66→61) while Union and Concurrent both *increased*.



Memory Trick

Whole chapter in one line: "TEARS OF OLD PM — 12 Schedules, 4 of them (Land, Defection, Panchayat, Municipality) added later by 4 different amendments."

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